

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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PATRICIA SNELL and MARK ALLEN,

Plaintiffs,

Plaintiffs designate
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK and POLICE OFFICERS
JOHN DOE 1-20¹.

The plaintiffs reside at:
Kings County, New York

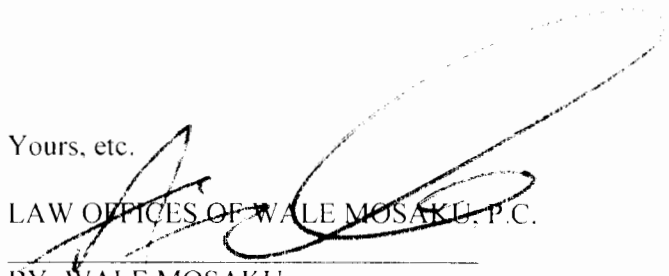
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
June 30, 2016

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

¹ The plaintiffs are currently unaware of the specific name(s), shield number(s), tax number(s), precinct(s), unit(s) and/or command(s) and addresses for service of process of these officers.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
PATRICIA SNELL and MARK ALLEN,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK and POLICE OFFICERS
JOHN DOE 1-20,

Defendants.

-----X

PATRICIA SNELL and MARK ALLEN (hereinafter "plaintiffs"), by their attorney(s),
THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE
CITY OF NEW YORK and POLICE OFFICERS JOHN DOE 1-20 (collectively referred
to as the Defendants), upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, the plaintiffs were, and still are, residents of the City of New York, who at all times material and relevant to this complaint resided, and still reside, in Kings County, City and State of New York.
3. Plaintiff Mark Allen is an African American male of full age.
Plaintiff Patricia Snell is an African American female of full age.
4. At all relevant times, defendants POLICE OFFICERS JOHN DOE 1-20 (collectively referred to as "defendant officer(s)"), of the New

York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.

5. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
6. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
7. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
8. The plaintiffs sue all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

9. All conditions precedent to filing of this action have been complied with; on July 23, 2015, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiffs and/or their representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Patricia Snell's claim was assigned Claim No. 2015PI021826. Plaintiff Mark Allen's claim was assigned Claim No. 2015PI021827.

10. Pursuant to New York State General Municipal Law §50-h, each plaintiff was orally examined by the defendant City of New York on December 10, 2015.
11. At least thirty days have elapsed since the service of the above-mentioned notice(s) of claim, and adjustment or payment of each plaintiff's claims has been neglected or refused.
12. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which each plaintiff's claim is based.

FACTUAL ALLEGATIONS

13. On or about July 5, 2015, at approximately 03:30 a.m., on the sidewalk outside of the plaintiffs' residence described as 240 Lott Avenue, Brooklyn, N.Y. 11212 ("subject location") the plaintiffs were unlawfully and wrongfully arrested by the defendant officers.
14. That immediately prior to the arrests of the defendants, as they were within their residence they learned that their daughters were involved in an altercation at the subject location.
15. That as such, the plaintiffs left their residence and went to the subject location in order to defuse the situation.
16. That as the plaintiffs arrived at the subject location, they observed numerous police officers at the scene.
17. That as the plaintiffs went to retrieve their daughters they were arrested by the defendant officers.
18. That at the time of his arrest, the plaintiff Mark Allen was viciously assaulted by one of the defendant officers (described as a tall black male), who wrenched his left arm all the way up his back, causing serious injury to said plaintiff.
19. The plaintiffs where both then transported to the 73rd precinct, where they were processed, or otherwise fingerprinted and photographed.
20. That the plaintiff Patricia Snell was subsequently released from the precinct at approximately 07:00 a.m. on July 5, 2015 without charge.

21. That the plaintiff Mark Allen was subsequently arraigned in front of a Kings County Criminal Court Judge at approximately 11:00 p.m. on July 5, 2015, upon charges of Disorderly Conduct, Resisting Arrest and Inciting a Riot, and released upon his own recognizance.
22. The criminal case against the plaintiff Mark Allen is currently pending.

CAUSE(S) OF ACTION ON BEHALF OF EACH PLAINTIFF: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

23. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 22 of this complaint as though fully set forth herein.
24. The defendant officers illegally and unlawfully detained and confined the plaintiffs, without any legal warrant authorizing them to do so.
25. The above-described respective arrest, detention and imprisonment of each plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.
26. As a result of each plaintiff's above-described false arrest and detention, he/she has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him/her, was prevented from attending to his/her necessary affairs, and has been otherwise damaged in his/her character and reputation.
27. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
28. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
29. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF PLAINTIFF MARK ALLEN: EXCESSIVE
FORCE UNDER 42 U.S.C § 1983

- 30. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 29 of this complaint as though fully set forth herein.
- 31. The level of force employed by one or more of the defendant officers was objectively unreasonable and in violation of the plaintiff Mark Allen's constitutional rights.
- 32. As a result of the aforementioned conduct of the defendants, the plaintiff Mark Allen was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION ON BEHALF OF PLAINTIFF MARK ALLEN: DENIAL
OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE
TO THE FABRICATION OF EVIDENCE

- 33. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.
- 34. The defendant officers fabricated evidence and/or created false evidence against the plaintiff Mark Allen.
- 35. The defendant officers forwarded fabricated and false evidence/false information concerning the plaintiff Mark Allen to the prosecutors in the Kings County District Attorney's office.
- 36. The defendant officers misrepresented and falsified evidence against the plaintiff Mark Allen throughout all phases of the criminal proceeding.
- 37. The defendant officers misrepresented and falsified evidence against the plaintiff Mark Allen to the prosecutors in the Kings County District Attorney's office.
- 38. The defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.

39. The defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
40. By creating false evidence against the plaintiff Mark Allen; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in against the plaintiff Mark Allen being deprived of his liberty, the defendant officers violated against the plaintiff Mark Allen's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
41. As a consequence of the defendant officers' actions, the plaintiff Mark Allen suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
42. The plaintiff Mark Allen hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.
43. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: FAILURE TO
INTERVENE UNDER 42 U.S.C § 1983

44. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his/her constitutional rights, as more fully set forth above.

46. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his/her constitutional rights, despite having had a realistic and reasonable opportunity to do so.
47. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, personal injuries, humiliation, mental anguish, depression, and his/her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: ASSAULT AND BATTERY

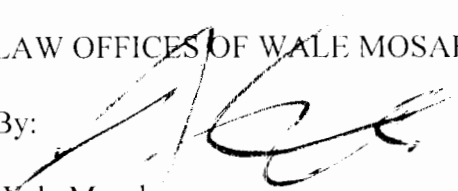
48. Each plaintiff repeats and realleges paragraphs 1 through 47 as if each paragraph is repeated verbatim herein.
49. As set forth above, the defendants assaulted each plaintiff, battered each plaintiff, and subjected each plaintiff to excessive force and summary punishment.
50. The defendants were at all material times acting within the scope of their employment.
51. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
52. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
53. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant officer in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest: all in a

sum of money that exceeds the jurisdiction of all lower Courts. and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
June 30, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

PATRICIA SNELL and MARK ALLEN,

Plaintiffs,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK and POLICE OFFICERS
JOHN DOE 1-20,

Defendants.

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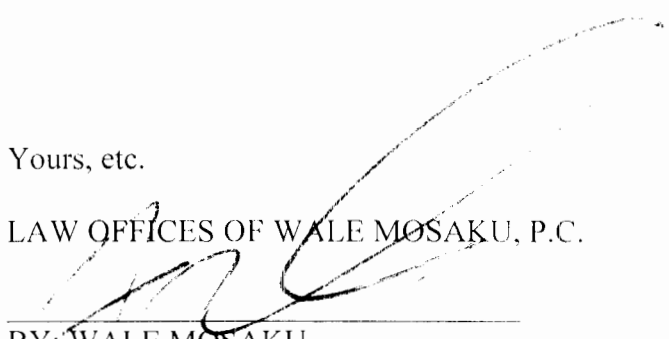
The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
June 30, 2016

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.


BY: WALE MOSAKU
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.:

PATRICIA SNELL and MARK ALLEN,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE 1-20,
Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
